

OFFER TO PURCHASE

Residential immovable property

Property: {property_address}

Agency: {organisation_name}

Agent: {agent_full_name}

FFC number: {agent_ffc_number}

This Offer to Purchase becomes a deed of sale when accepted by the Seller in writing. The schedules, standard terms, special conditions and annexures form one agreement.

1. Parties

Purchaser: {buyer_full_name}

Identity / registration number: {buyer_id_number}

Entity type: {buyer_entity_type}

Email: {buyer_email}

Telephone: {buyer_phone}

Seller: {seller_full_name}

Identity / registration number: {seller_id_number}

Entity type: {seller_entity_type}

Email: {seller_email}

Telephone: {seller_phone}

2. Property

Address: {property_address}

Display address: {property_display_address}

Suburb: {property_suburb}

City: {property_city}

Property type: {property_type}

Erf number: {erf_number}

Unit / section: {property_unit_number}

Section number: {property_section_number}

Scheme / complex: {property_complex_name}

Estate: {property_estate_name}

Sectional title number: {sectional_title_number}

3. Purchase price

Purchase price: {purchase_price}

Deposit: {deposit_amount}

The Purchase Price is payable in accordance with the accepted offer, guarantees, bond approval, cash undertakings and conveyancer requirements.

4. Finance

Finance type: {finance_type}

Bond amount: {bond_amount}

Cash contribution: {cash_amount}

5. Suspensive conditions

{suspensive_conditions}

If a suspensive condition is not fulfilled or waived within the agreed period, the parties must follow the consequence recorded in this agreement.

6. Occupation and transfer

Occupation date: {occupation_date}

Expected transfer date: {transfer_date}

Risk, benefits and obligations transfer according to the final agreement terms and applicable conveyancing requirements.

7. Fixtures and fittings

The Property is sold together with fixtures and fittings of a permanent nature unless expressly excluded in Special Conditions or an annexure.

8. Capacity and authority

Each party warrants that they have the necessary capacity and authority to sign this agreement. Legal entities must ensure the signatory is duly authorised.

Seller representative: {seller_representative_name}

Representative capacity: {seller_representative_capacity}

Resolution date: {seller_resolution_date}

Authority basis: {seller_authority_basis}

9. Commission

Agency: {organisation_name}

Gross commission percentage: {gross_commission_percentage}

Gross commission amount: {gross_commission_amount}

Agency commission amount: {agency_commission_amount}

Agent commission amount: {agent_commission_amount}

Commission is earned and payable according to the accepted offer, mandate and applicable agency agreement.

10. Special conditions

{special_conditions}

Annexures: {annexures_list}

11. General terms

The parties choose their recorded addresses for notices and consent to the jurisdiction recorded in the final agreement. No amendment or cancellation is valid unless reduced to writing and signed or accepted by the parties as required.

The parties consent to processing of personal information required for conveyancing, finance, verification, communication and transaction administration.

The parties acknowledge that they have read, understood and accepted every page of this agreement and its annexures.

12. Signatures

Signed at _____ on _____.

Purchaser

Name: {buyer_full_name}

Signature: _____

Initials: _____ Date: _____

Seller

Name: {seller_full_name}

Signature: _____

Initials: _____ Date: _____

Witness

Name: _____

Signature: _____ {witness_signature}

Agency record

Agency: {organisation_name}

Agent: {agent_full_name}

FFC number: {agent_ffc_number}